

Subject: Eligibility Requirement

Item: Proof of California Residency

PURPOSE:

The purpose of this policy is to minimize fraud and maintain program integrity during the certification process.

POLICY:

- I. Applicants must reside in the State of California to be eligible for WIC program benefits.
 - A. Local agency (LA) staff must require an applicant to provide proof of California residency at initial certification, recertification, and under the following circumstances when transferring:
 1. Families with an existing short certification (short-cert) in the WIC Web Information System Exchange (WIC WISE) for not providing proof of residency at initial certification/recertification.
 2. Individuals into newly created families.
 3. Families from out-of-state or from the WIC Overseas Program with a Verification of Certification (VOC).
 - B. The length of time an applicant has resided in California is not a factor in determining residency.
 - C. If the applicant fails to provide proof of residency, LA staff must allow the applicant to self-declare their residency for a maximum of 30 days. Note that families transferring within California who already have a short-cert for not providing proof of residency cannot self-declare for an additional 30 days.
 - D. Persons for whom proof of residency presents an unreasonable barrier to participation may self-declare for their entire certification period. See Exceptions section at the end of the policy for more details.
 - E. LA staff must scan documentation into WIC WISE when “Handwritten document (scan-in)” is selected as proof.
 - F. Change of address does not require proof during certification period.

PROCEDURES:

- I. Proof of California Residency
 - A. LA staff must require proof of residency from each applicant according to policy above. Approved sources of proof of residency can be provided in physical form, displayed in-person via electronic format (e.g., emails, cell phones, tablets, pictures, etc.), or obtained remotely. For acceptable means of obtaining documents remotely, refer to WPPM 220-30.

CERTIFICATION

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1. The proof provided must contain the name and address of the person being certified, of the spouse/significant other, or of the family representative/caretaker/parent/guardian applying on behalf of an infant or child under the age of five years.
2. Post office box (PO Box) is not acceptable as proof of residency.
- B. LA staff must make an effort to collect proof of residency in advance of certification or recertification appointments to help in streamlining the certification process.
- II. Documentation of an approved source for Proof of California Residency
 - A. In WIC WISE, LA staff must select one of the options listed below for proof of California residency. The following are the approved sources of proof of residency:
 1. Aid verification letter/Notice of Action
 2. Any bill, property tax bill/receipt
 3. Any mail/postcard/magazine
 4. Bank statement
 5. California driver's license/ID card/Matricula Consular
 6. Car/vehicle registration, insurance
 7. Check with pre-printed address
 8. Court orders
 9. Disaster victim (signed Self Declaration required)
 10. Foster child placement letter/notice
 11. Handwritten document (scan-in)
 12. Homeless (signed Self Declaration required)
 13. Immigration or naturalization papers
 14. Income tax return/W2
 15. MEDS Interface/Verified Adjunctive Eligibility
 16. Migrant (signed Self Declaration required)
 17. Military orders
 18. No proof provided (signed Self Declaration required)
 19. Official school documents/financial aid documents
 20. Pay stub
 21. Rent receipt/mortgage statement/lease agreement
 22. Remote village/rural area – no mail delivery (signed Self Declaration required)
 23. SSI or SSD statement

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- 24. Unemployment benefits card/letter
- B. When LA staff are provided any handwritten source for proof of residency even if not listed above, it must be scanned into WIC WISE.
- C. Prior to a certification appointment, LA staff can mail a postcard or letter to the applicant at their stated address. At the initial certification or recertification appointment the applicant can then present this as proof of residency.
- D. LA staff are permitted to request additional proof of residency if they doubt the validity of any of the sources provided.
 - 1. LAs must contact CDPH/WIC at WICabuse@cdph.ca.gov if fraud is suspected.
- III. When using MEDS Interface/Verified Adjunctive Eligibility as proof of residency, LA staff must either:
 - A. Use the Verify MEDS pathway to confirm that the applicant or a member of the household receives Medi-Cal, CalWORKs, or CalFresh as indicated by a “Y” in one or more programs.
 - B. Use the Confer pathway to confirm another family member who is not a WIC participant has a “Y” in Medi-Cal, CalWORKs, or CalFresh.
 - C. Confirm adjunctive eligibility manually.
- IV. Failing to provide an approved source for proof of residency LA staff must:
 - A. Permit an applicant to self-declare residency for a maximum of 30 days.
 - 1. Certify or recertify the applicant or complete the transfer. Note that an individual with a pre-existing short-cert in WIC WISE may not self-declare for a second 30-day period. Refer to WPPM 250-10 for out-of-state or overseas transfers with a VOC.
 - 2. Select the “No Proof Provided (Signed Self Declaration Required)” option from the drop-down menu in WIC WISE.
 - 3. Generate the *Self Declaration Statement* CDPH 4130 and obtain an e-signature. Provide a completed copy to the applicant/family representative/caretaker.
 - 4. Clearly inform the applicant: (1) an approved source of proof of residency is required for program eligibility within 30 days, (2) of the consequences of failing to do so, which can lead to being found ineligible for WIC and terminated from the program.
 - 5. Schedule a new appointment within 30 days.
 - 6. Issue only one month of food benefits.

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7. Out-of-state or WIC Overseas Program transfer with a VOC, do not get a short-cert, place a hold after benefit issuance and do not issue further benefits until proof of residency is provided.
 - B. If the applicant provides an approved source for proof of residency within 30 days and is found eligible, LA staff must document proof in WIC WISE. The short-cert must be removed and the certification period begins with the month food benefits were initially issued.
- V. Exceeding 30 days with No Proof of Residency
- A. If the applicant exceeds 30 days but then provides an approved source for proof of residency, LA staff must use the Reinstate function in WIC WISE.
 - B. If an applicant has been issued a Notice of Action at Initial Certification and Recertification CDPH 4134 and then provides proof of residency, LA staff must certify the individual again provided they still meet all other eligibility requirements.
 - C. If the applicant fails to provide an approved source within 30 days or transfers within California with a pre-existing short-cert and does not provide proof, the applicant must be determined ineligible. While the applicant must be given the opportunity to appeal this action, this is an initial determination and does not require a 15-day advance written notice of action. The determination of ineligibility is effective immediately. LA staff must:
 1. Verify termination has automatically occurred in WIC WISE.
 2. Not issue further benefits.
 3. Generate the *Notice of Action at Initial Certification and Recertification* CDPH 4134 and obtain an e-signature. Provide a completed copy to the applicant.

EXCEPTIONS:

- I. Self-declaration of residency is not allowed for more than 30 days except for the following circumstances, in which case self-declaration is valid for the entire certification period:
 - A. Disaster victim.
 - B. Migrant farmworker.
 - C. Homeless individual.
 - D. Resident of a remote Indian or Native village.
 - E. Resident of a rural location where there is no mail delivery.
- II. Under these circumstances, LA staff must:
 - A. Select the appropriate option from the Proof of Residency drop-down.
 - B. Generate the *Self Declaration Statement* CDPH 4130 and obtain an e-signature attesting to their address. Provide a completed copy to the participant.

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AUTHORITY:

[7 C.F.R. § 246.7\(c\)\(2\)\(i\)](#)

[7 C.F.R. § 246.7\(i\)\(4\)](#)

[WIC Policy Memorandum #99-4 Strengthening Integrity in the WIC Certification Process](#)

[WIC Policy Memorandum #2023-6: Streamlining Certification](#)

CROSS REFERENCE:

WPPM 220-30 Telehealth Privacy and Confidentiality

WPPM 250-10 Verification of Certification

Self Declaration Statement (CDPH 4130)

Notice of Action at Initial Certification and Recertification (CDPH 4134)